OFFENSES AGAINST THE MAIL AND POSTAL DESIGNATION NOTICE AND ACKNOWLEDGMENT

RANK/FULL NAME:	DATE:

Ref: (a) OPNAVINST 5112.6 (Series)
(b) DoD 4525.6-M
(c) Administrative Support Manual (ASM)
(d) 18 U.S.C.

1. Purpose and Use. This document provides a notice and acknowledgment to military and/or civilian postal clerks of general mail security duties, laws and rules and the sanctions imposed for violations thereof. This document shall also be used to designate mail orderlies and unit mail clerks (UMCs). Reference (a) requires personnel designated to receive, process, maintain, and deliver mail to endorse this form at initial designation and annually thereafter. All "mail handlers" (to include volunteers and augmentees) will read and sign this form annually. For Postal Clerks (PCs), the endorsed form must be maintained in post office or mail room records. For mail orderlies and UMCs, the original is kept on file at the post office.

Appointee's Signature:

2. General. References (a) and (b) require the Military Postal Service to preserve the security of all mail in its custody and protect it from unauthorized opening, inspection, reading, tampering, delay, or other offenses against the mail. Mail is considered to be in the possession of the U.S. Postal Service or Military Postal Service from the time deposited in an authorized civilian or military post office, authorized mail depository, or given to an authorized UMC (or mail orderly) for posting until it is delivered to the addressee or an authorized representative. PCs, official mail center employees, mail orderlies, and UMCs must have at a minimum, a favorable National Agency Check (NAC) or National Agency Check with Inquiries (NACI) so that an interim SECRET clearance may be issued if designated to handle official registered mail. A SECRET or interim SECRET clearance pending adjudication is required to process mail that could contain classified matter.

3. Sanctions. PCs, mail orderlies, and UMCs who commit or allow others to commit an offense against the mail are subject to administrative discipline, court martial, or criminal prosecution leading to a fine, imprisonment or both.

Appointee's Signature:

4. Specific Duties and Prohibitions

[illegible] witness (reference (b), paragraph C10.7.6).

b. **Safeguarding Mail**. PCs, UMCs, and mail orderlies may be held responsible for loss brought about by failure to safeguard mail entrusted to their care. When UMCs are absent from unit mailrooms, receptacles for registered mail, certified mail, items received via GSA approved shipping services, and entrance to the unit mailroom will be locked. Mail in the custody of UMCs or mail orderlies will not be subject to delay, interception, search, and will be protected from inclement weather. Mail will be delivered only to the addressee, an agent designated by the addressee in writing, or to the servicing post office for outgoing mail (reference (b), paragraph C3.2.5). (This includes returning undeliverable as addressed (UAA) mail to servicing mailroom.)

c. **Moving the Mail**. When a designated PC, UMC, or mail orderly is unable to consult a supervisor concerning proper mail security procedures in a particular matter and when postal regulations or written directions issued by the U.S. Postal Service Inspection Service or General Counsel do not detail lawful security procedures in the matter, the member must protect the mail in all respects and move it or permit it to move without interruption to its destination (reference (c), chapter 2, 274.1).

5. Some Associated Criminal Statutes (non-exclusive)

a. **Obstruction of Correspondence and Theft or Receipt of Stolen Mail Matter**. Whoever is caught stealing, taking, or obtaining by fraud, any stamped letter, post card, package, or pouch from an authorized mail depository; opens or destroys such mail; or removes from such mail anything contained therein is subject to a fine of not more than $2,000 or imprisonment for not more than five years, or both. Any person buying, receiving, concealing or unlawfully possessing mail matter or contents thereof, knowing same to have been stolen, also will be subject to a fine or imprisonment (reference (d), §1708).

Appointee's Signature:

b. **Mailing Obscene or Crime Inciting Matter**. Whoever deposits in a post office or authorized mail depository any letter, package, or other mail matter containing obscene or indecent pictures, writings, or publications is subject to a fine of not more than $5,000 or imprisonment for not more than five years, or both (reference (d), §1461).